IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, COURT – II

Item No.1
(CAA)-18(ND)/2021

IN THE MATTER OF:

M/s. Newwave Commercial Pvt. Ltd. ... **Applicant/Petitioner**

And

M/s. P.R. Kumar Capital Pvt. Ltd.

Under Section: 230-232

Order delivered on 29.10.2021

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (J)

SHRI L.N. GUPTA,
HON'BLE MEMBER (T)

PRESENT: Kunal Sharma and Zehra Khan, Standing Counsels and Shreya Choudhary, Advocate for Income Tax Department, Rekha Mittal for Petitioners

ORDER

Certain clarifications were asked from the Petitioners. Heard the Ld. Counsel for the Petitioners, who clarified that the IT Department has submitted NOC which is also applicable in case of the Transferor Company. He added that the report of the OL is on record. The Petitioner also submitted that the petition was admitted and the order for issuance of notice was passed on 5th February, 2021. We find that since the prayer 'D' in the petition was made for issuance of the notices, the order for issuance of notice was issued again. In these circumstances, the order dated 27th October, 2021 is hereby recalled.

Order Reserved.

-Sd-

(L. N. GUPTA)
MEMBER (T)

-Sd-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

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